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Athens, 02-09-2024

Protocol No.: 2285

DECISION 23/2024

The Hellenic Data Protection Authority convened, at the invitation of its President, in a meeting via teleconference on 26-04-2024, following a postponement on 26-03-2024, in order to examine the case referred to in the background of this document. Present at the meeting were the President of the Authority, Konstantinos Menoudakos, the regular members Charalampos Anthopoulos, Spyridon Vlachopoulos, Aikaterini Iliadou, Christos Kalloniatis, Konstantinos Lamprinoudakis, and Grigorios Tsolias, as well as the alternate member Nikolaos Faldamis, as the rapporteur. Also present, without voting rights, were Charis Simeonidou, special scientist – auditor, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

With the identical complaints numbered G/EIS/10434/26-09-2022 and G/EIS/10441/26-09-2022 from A and B, respectively, against the EKAB, which concern the same factual circumstances, a violation of the complainants' right to access their personal data is reported, specifically regarding recorded telephone conversations they had with the EKAB call center. In particular, according to the aforementioned complaints, following an incident of delayed arrival of an ambulance that they had called on 15/6/2022 on behalf of a relative, specifically the (minor) granddaughter of the first complainant and daughter of the second complainant, the complainants submitted a request on 24/6/2022 via the contact form on the EKAB website for access to the recorded calls they made from the number ... on 15/6/2022 at ..., and from the number ... on the same day and at the times ..., ..., ... p.m. Nevertheless, as the complainants assert, EKAB did not respond in any way to their above request.

In the context of investigating the above complaints, the Authority, with document G/EKSE/3073/01-12-2022, communicated the relevant documents to the complained EKAB and invited it to express its views on the allegations, clarifying in particular what procedure was followed by it after receiving the above access requests. At the same time, the Authority requested EKAB to provide its relevant Data Protection Policy, as well as any other document from which the management of requests from data subjects in accordance with the GDPR could be inferred.

In its response numbered G/EIS/12651/19-12-2022, the complained EKAB initially stated that it is a public legal entity established in 1985, under the Ministry of Health, with the purpose, according to Article 29 of Law 4633/2019, "to coordinate the provision of immediate assistance and emergency medical care to citizens in emergency situations and to transport these citizens to health service units, to coordinate hospital and pre-hospital care in emergency and crisis situations, and to monitor and coordinate the emergency response systems of the hospitals of the National Health System (ESY)." It also stated that in order to exercise its relevant powers based on Article 33 of Law 4633/2019, the Independent Department of Health Operations (KEPY-EKAB) and the Unified Coordination Center of EKAB Operations (ESKE-EKAB) were established, which are now directly subordinate to the President of the Board of Directors of EKAB. The ESKE EKAB, among other things, manages incoming calls from citizens who call directly to the emergency number 166, during which the caller is asked for the address of the incident, the name of the person in need of assistance and their age, a description of the condition, and a contact phone number of the caller. According to EKAB, the recording of conversations between citizens and the...

166 started in the year 2001 and is conducted by a digital recorder located in a secure room, to which only the transcription committee appointed by a decision of the Board of Directors of EKAB has

access. Calls are recorded on hard drives for a duration of ten (10) years according to a decision of the Board of Directors of EKAB, and a backup file is also maintained. As EKAB points out, the process of destroying files beyond ten (10) years has never been carried out and will take place for the first time in accordance with the applicable provisions in the first quarter of 2023. Furthermore, according to a relevant decision of the Board of Directors, the archive of recorded conversations of 166 is considered confidential, and the provision of copies or written transcriptions can only be made to administrative or prosecutorial authorities for the investigation of criminal offenses according to the applicable provisions and after a recommendation and approval by the Board of Directors of EKAB, or only with the approval of the President of the Board of Directors in exceptional cases of urgent deadlines from the prosecutorial authorities. As EKAB states in its response, citizens are not provided with copies of conversations or transcriptions, as mentioned on the website concerning citizen application procedures (<https://www.ekab.gr/pistopiitika-veveosis/>), "Certificates regarding calls to the emergency number 166 are not issued, and this specific information must be certified by the respective mobile or landline service provider. Copies of conversations or transcriptions of conversations of 166 are not provided because they are covered [by] special confidentiality, the telecommunications privacy legislation (Article 5 paragraphs 1, 2, 3 of Law 2690/1999). Invocation of the 'right of access' under Article 15 of the GDPR cannot be established because EKAB does not certify the callers." Regarding the reported factual incidents, EKAB, in its response, stated that on 24/6/2022, it received a message via the contact form on its website in the "COMPLAINTS" category, purportedly sent by the first complainant (ref. no. ...), which "essentially refers to a complaint about the operational management of an incident." EKAB quotes verbatim the said complaint, which includes the phrase "Calls must be heard, and through personal data, we want copies of the calls, as our personal data." Additionally, EKAB mentions that in July 2022, an unknown man called the Independent Office of the Data Protection Authority of the agency, requesting information about the contact form filled out by a third party, namely the first complainant, and that subsequently, on 01/08/2022, EKAB sent the ... response to the first complainant, who had not submitted any documentation (identification details, authorization) to receive a response regarding the complaint about the management of the transfer. EKAB submits this response as "Appendix C," from which it appears that the complainant was informed that she was not authorized to receive information about the incident, as it concerns a minor for whom she is not the guardian. In the same response, EKAB reiterates the excerpt from the agency's policy analyzed on its website (<https://www.ekab.gr/pistopiitika-veveosis/>), particularly emphasizing that the complainant was already aware a) that the service does not provide copies of conversations or transcriptions of the number 166 and b) the legal basis on which these are not provided "in simple terms understandable to the average citizen." Furthermore, EKAB presents the request from the second complainant dated 26/9/2022 via e-mail, from the address ... (which explicitly refers to the right of access under Article 15 GDPR), stating that it received ref. no. ..., that this also primarily concerned a complaint about the operational management of the incident and that it was sent without any documentation, such as identification, authorization from the first complainant, identification details of the child, etc., and claims that the EKAB service chose to remain silent and not respond "to a abusively repetitive request from a person who ignores basic provisions of everyday transactions with public administration (submission of a signed request, identification details, etc.)" making use of the provision of Article 4 paragraph 3 of Law 2690/1999, according to which "Services are exempt from the obligations under paragraph 1 if the request is evidently unreasonable, vague, incomprehensible, or is abusively repetitive," while at the same time, an investigation into the incident had already been initiated ex officio. Furthermore, EKAB presents a new message it received, after being notified of the complaints with document G/EXE/3073/01-12-2022 from the Authority, from the second complainant via e-mail on 3/12/2022, which is stated to be signed by both complainants and in which it is mentioned that

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"Today we request copies of all our registered personal data from the EKAB, which must be sent within the regulated time frame," while there is a specific reference to the GDPR and it states that the message received protocol number ... and was answered in detail on 6/12/2023 via e-mail, referring the applicant to the website <https://www.ekab.gr/pistopiitika-veveosis/> to be informed about the data

provided according to the procedures mentioned there and the required documentation. The response is submitted as Appendix D and is addressed to the "Holder of the electronic address ...".

With the above response to the Authority, EKAB further presents its own legal analysis and interpretation of the provisions of the GDPR in conjunction with Article 5 paragraph 3 of Law 2690/1999, according to which "the Board of Directors of EKAB has established a specific procedure according to which the order for transcription is given by the Board of Directors of EKAB and in urgent cases, such as following an order from the prosecutor under a deadline (with the prosecutor himself as the recipient for the investigation of criminal offenses) by a decision of the President of EKAB (Protocol No. 18/08-08-2006 of the Board of Directors of EKAB). In none of the decisions of the Board of Directors of EKAB is there a provision for the transcription to be conducted and provided to citizens. In the meeting No. 9/13-03-2001 (ITEM 1) of the Board of Directors of EKAB, it was decided that the transcription of recorded conversations is conducted (a) for the control of the communication behavior of the staff with the citizen as well as for the correct and faithful compliance with the obligations of the staff involved in managing incidents within the framework of executing their official duties and (b) only in exceptional cases to be provided to those conducting administrative investigations and to investigative authorities. It was also decided "to form a three-member committee, in the presence of which the transcription will take place and a relevant record will be drawn up. These records will be registered and archived as confidential documents." Furthermore, EKAB invokes both the provision of Article 5 paragraph 3 of Law 2690/1999, according to which the right of access to administrative documents applies subject to the confidentiality provided by special provisions, and the provision of Article 15 paragraph 4 of the GDPR, according to which, as stated in EKAB's response, the right to receive a copy under Article 15 paragraph 3 of the GDPR should not adversely affect the rights and freedoms of others, in this case, the callers to EKAB. Therefore, EKAB considers that it is not obliged to provide copies of recorded calls to the number 166 and that this practice does not constitute a violation of the right of access under Article 15 of the GDPR because the legal conditions for its exercise do not exist, emphasizing that it does not have a system for the automated collection of the identity and geographical location of each caller to the number 166, that it does not request and does not process personal identity data of the caller during the announcement within an emergency incident (invoking the provision of Article 11 of the GDPR), while informing the public about the relevant policy on its website. Finally, it argues that the complainants up to the day of the response (16/12/2022) did not provide any proof of their identification or signed request, nor have they been authenticated according to paragraph b of paragraph 4 of Article 19 of Law 4727/2020. Subsequently, following the G/EIS/12735/21-12-2022 relevant request of complainant B for a copy of the above response, the Authority with G/EXE/3388/21-12-2022 transmitted the above response document from EKAB to the complainant, and the complainant returned with G/EIS/1277/20-02-2023 a supplementary document in which he argues that EKAB's claims are pretextual and false, particularly because the content of its website has been modified since the time of the reported factual incidents. According to this response, the information provided to citizens on EKAB's website was incomplete. The complainant emphasizes that during the phone call he had with the DPO of EKAB in July 2022, he provided his identification details, thus he was not "unknown" as EKAB claims, and he was not asked for any further information for his identification, while the subject of the discussion included, among other things, data concerning his mother and daughter. He also states that he was not given any guidance on how to submit a request for access under Article 15 of the GDPR and that the response received by his mother, the first complainant, was incomplete and did not explain either the reasons for the refusal or the possible required procedure to obtain copies of the calls. According to the complainant, since the GDPR...

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There is no specific form provided for the submission of access requests; every employee of the EKAB (National Emergency Medical Service) who receives a valid request for access to personal data, as in their case, is obliged to identify it as such and handle it appropriately. The complainant emphasizes that the public notification regarding the non-provision of recorded calls to callers, which EKAB refers to, was not present on its website in August 2022. Instead, it was stated that "certificates are issued within 10 working days and in case additional processing is required (e.g., transcription) within 60

days," providing relevant photographs and screenshots from which it appears that the content of the page was subsequently modified. Finally, he points out that the response submitted by EKAB (Annex D) dated 6/12/2022, is said to have been sent to an incorrect email address, specifically to the address ... instead of the correct one ..., which constitutes a potential violation of personal data, while in any case, he has not received the said response.

Following the above, the Authority, with its document G/EXE/458/22-02-2023, notifying the complained EKAB of the aforementioned supplementary document from the complainant, requested EKAB to provide full clarifications on the new elements, emphasizing that, as it appears, at the time of the reported factual incidents (August 2022), in the section "CERTIFICATES-STATEMENTS" of EKAB's website, it was stated that "Certificates are issued within 10 working days and in case additional processing is required (e.g., transcription) within 60 days," and not the notification that "copies of conversations or transcriptions of conversations are not provided," in contrast to what was claimed in the previous document from 16-12-2022 from EKAB. Additionally, in the same document, it was noted that, from a relevant ex officio check conducted by the Authority on the historical display of EKAB's website from the digital archive Wayback Machine (<https://web.archive.org/>), it was found that the information provided to the public regarding the transcription of telephone conversations has been modified several times. Specifically, it was found that on this page, at various times, the following references to the issue of call transcription have been included:

- In February 2017: "Certificates requiring processing are delivered within 60 days (e.g., transcription). The mentioned delivery time applies provided that the application is sufficiently completed."
<https://web.archive.org/web/20170204034718/http://www.ekab.gr/pistopiitika-veveosis/>
- In June and October 2021: "7. When a request for the provision of transcriptions of recorded conversations at EKAB's T/A center is submitted, it should be transmitted via a prosecutorial order from which the obligation to provide to the applicant due to legal interest arises."
<https://web.archive.org/web/20210612134037/https://www.ekab.gr/pistopiitika-veveosis/> (June 2021)
<https://web.archive.org/web/20211009030859/https://www.ekab.gr/pistopiitika-veveosis/> (October 2021)
- In January and August 2022: "Certificates are issued within 10 working days and in case additional processing is required (e.g., transcription) within 60 days. The mentioned issuance time applies provided that the application contains complete details regarding the requested certificate."
<https://web.archive.org/web/20220116183400/https://www.ekab.gr/pistopiitika-veveosis/> (January 2022)
<https://web.archive.org/web/20220815152439/https://www.ekab.gr/pistopiitika-veveosis/> (August 2022)
- In November 2022: "Copies of conversations or transcriptions of conversations of 166 are not provided because they are covered by special confidentiality, the telecommunications privacy legislation (Article 5 paragraphs 1,2,3 of Law 2690/1999). Invocation of the 'right of access' under Article 15 of the GDPR cannot be established because EKAB does not certify the callers."

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<https://web.archive.org/web/20221130064607/https://www.ekab.gr/pistopiitika-veveosis/> (Nov. 2022)
Therefore, the Authority called upon the EKAB to clarify what practice it followed regarding the issuance or non-issuance of copies or transcripts of conversations to callers to the number 166 during the time of the reported actual incidents (June - September 2022), what the current practice is, and how the relevant change in the practice followed by the agency is justified when related requests are submitted, providing all relevant documentation. Furthermore, in the context of a self-initiated audit regarding the compliance of the reported agency with its obligations as a data controller, the Authority, in the same document, called upon the EKAB within a deadline of 15 days: a) to submit copies of the decisions of the Board of Directors of EKAB referred to in its response concerning the recording and transcription of conversations (ref. No. ... and ...), b) given that the aforementioned decisions of the Board of Directors were made prior to the implementation of the GDPR, to submit the activity record of processing of EKAB as per Article 30 of the GDPR, regarding the processing carried out by EKAB in the context of recording telephone calls, c) to clarify how the obligation to inform data subjects under Article 13 of the GDPR is fulfilled for this processing, and d) to clarify, providing complete

documentation, what the number of access requests for recorded conversations submitted to EKAB by data subjects – callers to number 166, has been since the implementation of the GDPR until the time of the audit and how they have been responded to by EKAB.

In its response document G/EIS/1892/14-03-2023, submitted following the granting of a relevant extension of the deadline that had been set, EKAB responded as follows: The agency, in the context of reviewing its procedures to comply with the GDPR as well as with national legislation (Law 4624/19 and 4727/20), and following a relevant recommendation from its Data Protection Officer on 5/11/2021, modified the erroneous, as it states, practice it had been applying regarding the transcription of calls, namely the issuance of transcripts to citizens upon judicial order due to legitimate interest, and the relevant case (7) was removed from its website, which urged citizens to seek a judicial order for this purpose. Thus, EKAB stopped fulfilling related requests on the grounds that: "EKAB does not request and does not process personal identification data of the caller during the announcement within an emergency incident and therefore cannot establish a claim of the 'right of access' under Article 15 of the GDPR, and the audio recordings or transcripts of conversations of 166 are covered by 'special confidentiality', the telecommunications privacy legislation, and therefore neither under Article 5 paragraphs 1, 2, 3 of Law 2690/1999 can the right be satisfied." According to the same response, a relevant phrase regarding the issuance of transcripts within 60 days inadvertently remained in the section "Certificates – confirmations" of its website. In the same response, EKAB provides excerpts from the Minutes of the Board of Directors (...), according to which the transcription of recorded conversations will be carried out for the purpose of monitoring the communication behavior of the staff with the citizen, for the proper and faithful compliance with the obligations of the staff involved in the management of incidents, etc., and the transcripts will be archived as confidential documents. To support the policy it applies, EKAB also invokes the provision of Article 30 of the Internal Regulation of Organization and Operation of the National Coordination Center for Emergency Operations and Crisis Management (ESKEDIK) of the emergency number 112, according to which the recordings of calls to this number are confidential documents, copies or excerpts of which are provided only to those conducting relevant administrative investigations as well as to investigative and judicial authorities upon request. Furthermore, EKAB invokes Article 29 paragraph 4c of Law 4938/2022 (KODKDL) concerning the conditions for granting a judicial order, as well as certain incidents of pressing requests for the issuance of transcripts from citizens and lawyers in the summer of 2022 with erroneous judicial orders, accompanied by threats to the Data Protection Officer, which resulted in the change of the information provided on the EKAB website on 9/9/2022 as follows: "Certificates regarding calls to the emergency number 166 are not issued, and this specific information will...

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must be certified by the respective mobile or fixed telephony provider. Copies of conversations or transcriptions of conversations from 166 are not provided as they are covered by special confidentiality, the telecommunications privacy legislation (Article 5 paragraphs 1, 2, 3 of Law 2690/1999). The invocation of the "right of access" under Article 15 of the GDPR cannot be established as the EKAB does not certify the callers. Furthermore, in the same response, EKAB submits to the Authority an excerpt of the activity record under Article 30 of the GDPR, which includes the activity of recording telephone calls: The subjects referred to are the patients and the calling third parties, the collected personal data includes "caller's voice, patient's full name, patient's age, contact telephone number, incident address, patient's health status," the purpose and legal basis for processing are described (Article 6 paragraphs d) and e) GDPR, Article 9 paragraph h) GDPR), while the following note is included: "the caller is not granted rights as their identification is not requested, nor is retroactive identification possible. For the patient who does not speak, but non-identifiable or cross-checked information is transmitted by the caller, no call details are provided, but the information transmitted verbally is recorded in a database from which a certificate of transfer can be requested in printed form, provided that an application is submitted and that this transfer ultimately took place." Regarding the information provided to the subjects under Article 13 of the GDPR, EKAB, in its response, argues that "the requirements under Article 13 of the GDPR are met in the following ways: Through the appropriate updates available at various points on the website, and more specifically the

details of the data controller <https://www.ekab.gr/diikisi-tou-ekav/>, the contact details of the DPO and the reference to the right to lodge a complaint <https://www.ekab.gr/dpo/>, a brief and concise reference to the agency's policy, the data that is provided and that which is not provided, and the contact details of the Data Controller <https://www.ekab.gr/pistopiitika-veveosis/>. Additionally, many times when elderly individuals call the service protocol and do not have internet access, the corresponding information is provided over the phone either by the Secretariat of the Emergency Medical Service or the Independent Office of the Data Protection Officer with which internal connection (transfer) is made. Furthermore, in the physical archive of the service, there is a continuously updated draft file in book format, which any citizen can study at the Central Service office (attached)." In this document, regarding the rights of the subjects, it is stated that "you have the ability to exercise ... a) the right to information and the right of access to all identifiable personal data that EKAB holds and processes regarding you, the type of processing ...". Regarding access requests received from 25/5/2018 to 01/03/2023, EKAB states that a total of 77 requests have been submitted, of which 52 have been satisfied and 25 have not been satisfied, and concludes again with the assertion that there is no violation of the right of access under Article 15 of the GDPR, as there are no legal conditions for its exercise. It is noted that from the documentation provided by EKAB and specifically from the table of access requests, where it is indicated for each request whether it "concerns a third party" or "concerns the same person," whether it "has a Prosecutorial" or "does not have a Prosecutorial" and whether the request was satisfied or not, it does not clearly emerge that a specific practice is maintained by EKAB, as it appears that requests for data provision have been satisfied both for "themselves" of the applicants and for third parties, whether they have or do not have a prosecutorial order (see, for example, request no. ... from a person who is not the caller for data concerning a third patient – deceased, which was satisfied) while in other cases requests for data provision concerning the applicants themselves have not been satisfied or have been partially satisfied (see, for example, request no. ...). The complainant requested and received a copy of the above second response from EKAB and subsequently returned with the G/EIS/2604/07-04-2023 supplementary document, in which he informs the Authority of the response his wife (a foreign national who does not speak Greek) received from EKAB when she contacted via email to obtain information regarding their daughter, noting that there is no English version of EKAB's website. In the provided response, EKAB informs the complainant's wife that she should contact the Greek embassy or consulate in her country in order to draft her request in the Greek language.

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Following the above, the Authority, with its calls Γ/ΕΞΕ/204/12-01-2024, Γ/ΕΞΕ/207/12-01-2024, and Γ/ΕΞΕ/208/12-01-2024, summoned the complainants and the complained party, EKAB, to a hearing before the Plenary of the Authority on 06/02/2024, in order to present their views on the case. During the session, the two complainants were present in person via videoconference, along with G, Head of the Independent Department of Health Operations - KEPY EKAB, D, the DPO of EKAB, and E, the DPO of the Ministry of Health. They were given a deadline and submitted in due time, the complainants the memorandum Γ/ΕΙΣ/1381/21-02-2024, and the complained EKAB the memorandum Γ/ΕΙΣ/1399/21-02-2024. Both during the hearing and with their memorandum, the complainants reiterated the claims mentioned in the complaint and their supplementary documents, particularly emphasizing the fact that with their requests, which included details about the incident as well as a photograph of the ambulance, they explicitly referred to the legislation on the protection of personal data and to the right of access under Article 15 of the GDPR for both themselves and the minor patient. Furthermore, these requests were sent to multiple email addresses of EKAB, including the address of the DPO (dpo@ekab.gr), yet they received no response, under the pretext that the requests were not submitted validly, despite the fact that the GDPR does not require a specific format for the submission of access requests. They also point out that EKAB did not request any additional information for the purpose of their identification, but the requests were ignored and subsequently EKAB labeled them as "abusive." The complainants state that abroad they have received similar recordings of phone calls in the context of emergency management, emphasizing that a Board decision of EKAB from 2006 cannot override the General Regulation. Thus, they argue that EKAB has

still not complied with the GDPR regarding the satisfaction of the rights of data subjects and that in this case, it violated the provisions of Articles 15, 12 par. 3, and 12 par. 4 of the GDPR, while it has still not provided the requested information, even though it has now been made aware of the access requests of the complainants as data subjects and from the Authority. Finally, the complainants reiterate that during the examination of the case, EKAB has modified the information provided on its website, while it proceeded to post its personal data protection policy after the hearing before the Plenary of the Authority. The complained EKAB, both during the hearing and with its memorandum, reiterated the view that until now, no valid access request has been submitted by the complainants, as no official signed request has been sent, but only a complaint regarding the transport process and the delay in the arrival of the ambulance. In response to a related question, the representative of EKAB clarified that even if a valid request were submitted, the complainant would only be provided with the transport certificate and the ambulance report, but not the recordings of calls to the number 166, because on the one hand, the purpose of keeping the record of phone calls is internal control, and on the other hand, the caller is not identified as their identity is not relevant during the call, but only the information concerning the incident. Furthermore, regarding the data that could be retained during the call to 166, EKAB refers to Article 5 par. 4 c of Act 2002 of ADAE – Decision No. 216/2008 (Government Gazette 1898/B/17-09-2008), according to which "the competent authority for dealing with emergency situations retains the name of the caller only for the time necessary to complete the purpose of immediate intervention and then proceeds to delete it," arguing that therefore, "it is objectively prohibited by Greek legislation" to retain the caller's data beyond the completion of the purpose of immediate intervention, that is, at most 1-2 hours after the phone call. EKAB cites the Opinion 9/2022, which was issued at its request, and according to which "the Public Prosecutor is the only one legally competent to consider the particular elements of each case (related to the person asserting a legal interest, the right claimed, their proven identification with the person who called and spoke with the employee of the EKAB call center, etc.) and to determine whether the satisfaction of their request can be made within the framework of the application of the provision of Article...

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29 § 4 item b of the KODKDAL, so that it can subsequently issue the relevant prosecutorial order to the competent service of the EKAB, or if, possibly, there exists any legal impediment arising from the applicable legislation (Article 263 of the Criminal Procedure Code), communication privacy, personal data protection, etc.), in which case it will act accordingly." As EKAB argues, there is no provision in any decision of the Board of Directors of EKAB for conducting transcriptions or granting audio files directly to citizens. EKAB also refers to Law 3471/2003, which incorporates Directive 2002/58/EC into Greek Law, and claims that the content of telephone conversations and the caller's number are protected by communication privacy, simultaneously invoking the provision of Article 95 of the GDPR, according to which the GDPR does not impose additional obligations on natural or legal persons regarding the provision of electronic communication services in relation to matters subject to specific obligations with the same aim as defined in Directive 2002/58/EC. EKAB also refers to Article 5 paragraphs 1-3 of Law 2690/1999 (Administrative Procedure Code), according to which the right of access to public documents is not satisfied if it infringes on confidentiality provided by special provisions, emphasizing that in the case of telephone conversations, there is communication privacy, while additionally invoking the exception of Article 15 paragraph 4 of the GDPR, according to which the right of access to personal data is satisfied provided that it does not adversely affect the rights and freedoms of others, in this case, the employees of EKAB. In conclusion, EKAB reiterates the view that there is no violation of the right of access provided for in Article 15 of the GDPR because the legal conditions for its exercise do not exist, and that, despite the fact that it has posted on its website the procedures that a citizen must follow and the official forms that must be completed to obtain a transfer certificate, up to 19/2/2024 "the alleged complainants," as it states, did not provide any proof of their identification or signed application nor have they been authenticated according to Article 19 paragraph 4 item b of Law 4727/2020, and requests the dismissal of the complaints. Regarding the fulfillment of the principle of transparency, EKAB states that it has posted the relevant Policy on its website (www.ekab.gr/dpo).

The Authority, after examining the elements of the file and having heard the rapporteur and the clarifications from the assistant rapporteur, after thorough discussion

CONSIDERED IN ACCORDANCE WITH THE LAW

1. From the provisions of Articles 51 and 55 of the GDPR and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the General Regulation (EU) 2016/679 for the protection of natural persons against the processing of personal data (hereinafter GDPR), this law, and other regulations concerning the protection of individuals from the processing of personal data. Therefore, the Authority's competence to address a specific case is linked to the scope of application of the GDPR, which is defined by Article 2 paragraph 1 of the GDPR: "This Regulation applies to the processing of personal data that is automated in whole or in part, as well as to the non-automated processing of such data which are included or are intended to be included in a filing system," while "personal data" is defined according to the definition in Article 4 paragraph 1 of the GDPR as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person." Therefore, a critical prerequisite for the application of the GDPR and the establishment of the Authority's competence in this case is the determination that the recording of telephone calls to the emergency number 166 constitutes processing of data that can be attributed directly or indirectly to

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specific, identified, or identifiable natural person, and therefore constitute personal data of the callers and, in this case, the complainants.

2. According to Recital 26 of the GDPR, "...In order to determine whether a natural person is identifiable, all means that are reasonably likely to be used should be taken into account, such as the separation of that person, either by the data controller or by a third party, for the direct or indirect verification of the identity of the natural person. To ascertain whether certain means are reasonably likely to be used for the verification of the identity of the natural person, all objective factors should be considered, such as the costs and time required for identification, taking into account the technology available at the time of processing and technological developments. The principles of data protection should therefore not apply to anonymous information, that is, information that does not relate to an identified or identifiable natural person or to personal data that has been made anonymous in such a way that the identity of the data subject cannot or can no longer be ascertained." Furthermore, in Opinion 7/2004 of the Article 29 Working Party regarding the meaning of the term 'personal data' it is stated: "As for the form or medium in which this information is provided, the concept of personal data includes information that is available in any form, e.g., alphabetical, numerical, graphic, photographic, or acoustic. It also includes information, e.g., on paper, information stored in a computer's memory in binary code, or on videotape, which is a logical consequence of the description of the scope, which covers the automated processing of personal data. Specifically, in this regard, audio or visual data are considered personal data to the extent that they may constitute information about a natural person. Indeed, the specific reference to audio and visual data in Article 33 of the directive must be interpreted as confirmation and clarification that such data are indeed included within its scope (provided that all other conditions are met) and that the directive applies to them. [...] Example No. 2: Banking transactions via telephone: In banking transactions via telephone, where the voice with the customer's instructions to the bank is recorded on tape, these recorded instructions must be considered as personal data. [...] "the identity of a person can be determined directly from the name or indirectly from a telephone number, vehicle registration number, social security number, passport number, or from a combination of significant criteria that allow for their identification by narrowing down the range of the group to which they belong (age, profession, place of residence, etc.).... the degree to which certain identification elements are sufficient to achieve identification depends on the context of the specific situation. [...] As for persons whose identity is known or can be verified "directly", the most common

identifying element is the person's name and, in practice, the concept of "the person whose identity is known" mostly refers to the person's name. [...] As for individuals whose identity is known or can be verified "indirectly",.... In cases where, at first glance, the extent of the available identifying information does not allow someone to distinguish a specific person, it may still be possible to "ascertain their identity" because the said information, in combination with other information (which may be held by the data controller), will allow the distinction of the individual from others." As the CJEU has ruled (C-604/22), the use of the term "indirectly" by the Union legislator indicates that, for the characterization of information as personal data, it is not required that this information alone enables the identification of the data subject, but it is sufficient that the identification can be made possible using

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of supplementary information², while additionally, for natural persons to be identifiable, it is not required that all information enabling the identification of the data subject be available to only one person.³ To verify whether the identification of the data subject is possible

2 See CJEU judgment C-604/22, paragraphs 39-41:

<https://curia.europa.eu/juris/liste.jsf?num=C-604/22&language=en>: "39 As the Court has ruled, the use of the term 'indirectly' by the Union legislator indicates that, for information to be classified as personal data, it is not necessary for that information alone to enable the identification of the data subject (see, by analogy, judgment of 19 October 2016, Breyer, C-582/14, EU:C:2016:779, paragraph 41). Conversely, from Article 4, point 5, of the GDPR, in conjunction with Recital 26 of that regulation, it follows that personal data which could be attributed to a natural person using supplementary information must be considered information relating to an identifiable natural person (judgment of 5 December 2023, Nacionalinis visuomenės sveikatos centras, C-683/21, EU:C:2023:949, paragraph 58). 40 Furthermore, Recital 26 clarifies that, in assessing whether a person is 'identifiable', all means that are reasonably likely to be used must be taken into account, such as, for example, their separation, either by the data controller or by a third party, for the direct or indirect identification of the natural person. From this wording, it can be inferred that, for an element to be characterized as 'personal data', within the meaning of Article 4, point 1, of the aforementioned regulation, it is not required that all information enabling the identification of the data subject be available to only one person (see, by analogy, judgment of 19 October 2016, Breyer, C-582/14, EU:C:2016:779, paragraph 43). 41 Therefore, the concept of 'personal data' does not only cover data collected and maintained by the data controller but also includes all information resulting from the processing of personal data concerning an identified or identifiable person (judgment of 22 June 2023, Pankki S, C-579/21, EU:C:2023:501, paragraph 45)."

3 See GDEU judgment T-557/20, available at:

<https://eur-lex.europa.eu/legal-content/EL/TXT/HTML/?uri=CELEX%3A62020TJ0557>, paragraphs 90-93: "90. Insofar as Recital 16 of Regulation 2018/1725 refers to means that can reasonably be used either by the data controller or by a 'third party', the wording dictates that, for an element to be classified as 'personal data', within the meaning of Article 3, paragraph 1, of Regulation 2018/1725, it is not required that all information enabling the identification of the involved person be available to only one person (see, by analogy, judgment of 19 October 2016, Breyer, C-582/14, EU:C:2016:779, paragraph 43). 91. However, the Court added that from the fact that the supplementary information required for the identification of the website user is not available to the provider of audiovisual media services but to the internet access provider of that user, it cannot be concluded that the dynamic IP addresses stored by the audiovisual media services provider are excluded from being personal data in relation to it (judgment of 19 October 2016, Breyer, C-582/14, EU:C:2016:779, paragraph 44). 92. The Court held that it must, however, be determined whether the possibility of combining the dynamic IP address with the supplementary information available to the aforementioned internet access provider constitutes a means that can reasonably be used to ascertain the identity of the relevant person (judgment of 19 October 2016, Breyer, C-582/14, EU:C:2016:779, paragraph 45). 93. The Court noted that this is not the case if the identification of the relevant person is prohibited by law or is practically

impossible, for example, because it entails disproportionate effort in terms of time, financial and human resources, whereby the risk of identifying the person is, in fact, negligible (judgment of 19 October 2016, Breyer, C-582/14, EU:C:2016:779, paragraph 46)."

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In the case of an individual, all means that may reasonably be used either by the data controller or by a third party must be taken into account. If such a possibility does not exist or is negligible, then the natural person is not considered identifiable. Regarding which means can be "reasonably" used either by the data controller or by a third party, all relevant factors must be considered, such as cost, the intended purpose, the manner of processing, the benefit anticipated by the data controller, the interests at stake for individuals, as well as the risk of technical or organizational failures. At the same time, the application of the criterion is dynamic, meaning that the most recent technology at the time of processing and the potential for its development during the data processing period must be taken into account (see Recital 26 of the GDPR). In this case, when making a call to the number 166, the Emergency Medical Services (EKAB) records both the external details of the communication (date, time, and duration of the call, calling number) and the content of the conversation, which includes the voice of the caller and the employee assisting them. From this information, combined with data that can reasonably be sought (such as, for example, a provider's certificate for the possession of the specific phone number or other information that the applicant may provide as applicable), the possibility of verifying the identity of the caller cannot in any case be considered nonexistent or "negligible." In other words, the individuals to whom the said data refers are potentially identifiable, therefore they constitute personal data within the meaning of the definition in Article 4 of the GDPR and, consequently, the recording of telephone calls to the number 166 constitutes processing of personal data by EKAB as the data controller, falling within the regulatory scope of personal data protection rules. Furthermore, in the activity record pursuant to Article 30 of the GDPR that EKAB sent to the Authority with reference number G/EIS/1892/14-03-2023, the activity of recording telephone calls is included, with explicit reference to the subjects (patients, third-party callers), the collected personal data (caller's voice, patient's name and surname, patient's age, contact phone number, incident address, patient's health status), the purpose, and the legal basis for processing, etc. In this context, the claim that "the caller is not provided with rights because their identification is not requested, nor is it possible to identify them retrospectively. For the patient who does not speak, but non-identifiable or cross-checked information is transmitted by the caller, no call data is provided, but the information transmitted verbally is recorded in a database from which a transfer certificate can be requested in printed form if an application is submitted and if that transfer ultimately took place" appears to contradict the reference that both the patient and the caller are subjects of personal data (i.e., identifiable natural persons) within the meaning of the GDPR. It is also noted that EKAB, in the same document, submitted to the Authority its request dated 12-10-2022 for the revocation of prosecutorial orders to the Athens First Instance Prosecutor's Office (reference number ...), in which it makes contradictory claims, specifically, on the one hand, asserting that the data does not belong to identifiable or identifiable natural persons, while on the other hand referring to the application of the principle of data minimization, according to Article 5(1)(c) of the GDPR, while stating that the service has satisfied related requests by providing other data "that prove the requested." According to the above findings and the provisions of Articles 57(1)(f) of the GDPR and 13(1)(g) of Law 4624/2019, it follows that the Authority has the competence to address the complaints of A and B against EKAB for violation of their right to access their personal data and to exercise, accordingly, the powers conferred upon it by the provisions of Articles 58 of the GDPR and 15 of Law 4624/2019.

3. Article 5(1) of the GDPR sets out the principles that must govern processing. According to Article 5(1)(a) of the GDPR, "1. Personal data shall be: a) processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency')."

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"transparency." Furthermore, according to the principle of accountability explicitly defined in the second paragraph of the same article, which constitutes a cornerstone of the GDPR, the data

controller "bears the responsibility and is able to demonstrate compliance with paragraph 1 ('accountability')." This principle entails the obligation of the data controller to be able to demonstrate compliance with the principles of Article 5 paragraph 1. For the purpose of adhering to the principle of transparency, at the time of data collection, when personal data is collected from the data subject, the data controller must provide the data subject with all the information required by Article 13 paragraphs 1 and 2 of the GDPR, specifically: "1. [...] a) the identity and contact details of the data controller and, where applicable, of the representative of the data controller, b) the contact details of the data protection officer, where applicable, c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing, d) if the processing is based on Article 6 paragraph 1 point f), the legitimate interests pursued by the data controller or by a third party, e) the recipients or categories of recipients of the personal data, if any, f) where applicable, the intention of the data controller to transfer personal data to a third country or an international organization and the existence or absence of an adequacy decision by the Commission or, in the case of transfers referred to in Article 46 or 47 or Article 49 paragraph 1 second subparagraph, reference to the appropriate or suitable safeguards and the means to obtain a copy thereof or where they have been made available. 2. In addition to the information referred to in paragraph 1, the data controller [...] provides the data subject with the following additional information [...] a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period, b) the existence of the right to request from the data controller access to and rectification or erasure of personal data or restriction of processing concerning the data subject or the right to object to the processing, as well as the right to data portability, ...". As noted in Recital 39 of the Regulation, "Any processing of personal data should be lawful and fair. It should be clear to individuals that personal data concerning them is being collected, used, consulted, or otherwise processed, and to what extent the personal data is being or will be processed. This principle requires that any information and communication regarding the processing of such personal data be easily accessible and understandable, and that clear and plain language be used." Furthermore, according to the Guidelines of the Article 29 Working Party on transparency, "The requirement that information be provided to data subjects and that communication with them be done in a 'concise and transparent' manner means that data controllers should present information/communicate effectively and concisely to avoid creating fatigue due to the provision of information. This information should be clearly differentiated from other relevant information that does not concern privacy protection, such as contractual provisions or general terms of use. In an online environment, the use of a multi-layered privacy notice will allow a data subject to navigate to a specific section of the notice they wish to access immediately rather than having to scroll through lengthy texts searching for specific topics. [...] 11. The designation 'easily accessible' means that the data subject should not have to seek out the information; it should be immediately apparent to the data subject where and how to access this information, for example, by providing it directly to them, by linking it to them, by clearly indicating it, or in response to a question in plain language (for example, in a multi-layered privacy notice, in frequently asked questions, through pop-up windows that are activated when a data subject fills out an online form, or in an interactive digital environment via a chatbot interface, etc.)" (§ 9 and 11, WP260 rev.01).

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The purpose of the collection and retention of personal data, that is, the purpose of processing, does not influence the adherence to the fundamental principles of processing, which must be observed in principle in every case, regardless of purpose.

4. According to Article 15(3) of the GDPR, the data subject has the right to receive a copy of the personal data being processed, while according to paragraph 4 of the same article, the right to receive a copy must not adversely affect the rights and freedoms of others. As determined by the Authority (see decisions 20/2023, 36/2021, 26/2021, 13/2021), the GDPR does not establish a specific procedural framework for exercising the right of access but provides that the data controller must facilitate the exercise of the rights of data subjects (Article 12(2) GDPR), providing means for their electronic submission, especially when data is processed by electronic means (Recital 59 GDPR). According to the aforementioned Guidelines on transparency under Regulation 2016/679 (WP260

rev.01), the different ways provided by the data controller for the exercise of the rights of data subjects must be appropriate to the context and nature of their relationship and reflect the different ways in which data subjects interact with it. Specifically, a data controller who uses an electronic form on its website and paper forms at its reception still accepts access requests submitted in other ways (such as by letter or email) and provides a specific contact point for this purpose (access to which is possible via email or phone) to assist data subjects in exercising their rights (see example on page 35 of the guidelines WP260 rev.01). Therefore, the exercise of rights under Articles 15 to 22 of the GDPR does not need to be in a specific form or to be exercised ceremoniously, e.g., by invoking the provisions of the GDPR or by explicit reference to its exercise. Although standardized forms for exercising rights may facilitate the recognition of a right of access, its exercise is equally valid if the data subject submits it via letter, email, or orally. Consequently, it is not mandatory to use any standardized form, which data subjects are merely encouraged to use (see EDPB 19/2022). Therefore, a right of access is validly exercised by a data subject through an email addressed, among others, to the DPO of the data controller.

5. Furthermore, according to the provisions of paragraphs 3 and 4 of Article 12 GDPR, “3. The data controller provides the data subject with information on the action taken in response to a request under Articles 15 to 22 without undue delay and in any case within one month of receiving the request. This deadline may be extended by a further two months, if necessary, taking into account the complexity of the request and the number of requests. The data controller informs the data subject of this extension within one month of receiving the request, as well as the reasons for the delay. If the data subject submits the request by electronic means, the information is provided, where possible, by electronic means, unless the data subject requests otherwise. 4. If the data controller does not act on the request of the data subject, the data controller informs the data subject, without undue delay and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy.” The proper and timely fulfillment of the right of access of data subjects is a critical element for the transparency of processing. As noted in the EDPB Guidelines 1/2022 on the right of access, this right should not be viewed in isolation, as it is closely linked to other provisions of the Regulation, particularly with the principles of personal data protection, including legality and

4 “Guidelines 01/2022 on Data Subject Rights — Right of Access”, Version 2.0, March 28, 2023, available on the EDPB website - https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-012022-data-subject-rights-right-access_en

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the objectivity of processing, the obligation of transparency of the data controller, and with the other rights of the data subject provided for in Chapter 3 of the GDPR. Furthermore, it does not matter for what purpose the data subject exercises the right of access. According to the case law of the Authority, the GDPR does not impose conditions for its exercise, which is linked to the ability of the data subject to be aware of the processing and to verify the lawfulness of the processing (see Recital 63 of the GDPR, Decision of the DPA 1/2022), but is not limited to this purpose, as recently confirmed by a ruling of the CJEU (see Judgment C-307/22, §§29-52). Thus, there is no requirement to invoke the reasons for which the data subject wishes to exercise the right of access (see also Decisions of the DPA 36/2021, 2/2020, and 16/2017, para. 3). The same is also emphasized in the aforementioned Guidelines 1/2022 of the EDPB on the right of access (see in particular para. §13: “...the purpose of the right of access is not to be analyzed as a condition for the exercise of the right of access by the data controller in the context of its assessment of access requests. Therefore, data controllers should not check ‘why’ the data subject is requesting access, but only ‘what’ the data subject is requesting.” For the same reason, the purpose of processing personal data does not influence the ability to exercise the right of access by the subjects, who in principle have the right to receive a copy in accordance with Article 15 para. 3 of the GDPR, subject to para. 4 of the same article.

5 “The right of access should not be examined in isolation, as it is closely linked to other provisions of the GDPR, particularly with the principles of data protection, including the objectivity and lawfulness of

processing, the obligation of transparency of the data controller, and other rights of data subjects provided for in Chapter III of the GDPR.” (Guidelines 01/2022, §7).

6 <https://curia.europa.eu/juris/document/document.jsf?jsessionid=D5412AE4E56E4284050A2374E1AB30A5?text=&docid;=279125&pageIndex;=0&doclang;=EL&mode;=lst&dir;=&occ;=first&=1&cid;=560840>

7 See also in particular §38 of the above-mentioned CJEU ruling in case C-307/22: “It must be noted that neither the wording of Article 12, paragraph 5, nor the wording of Article 15, paragraphs 1 and 3, of the GDPR condition the free provision of the first copy of personal data on the invocation, by the data subject, of a reason justifying their request. Therefore, these provisions do not give the data controller the possibility to require the reasons for the access request from the data subject.”

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Restrictions on the exercise of rights provided for in the GDPR may be established in accordance with the terms of Article 23 of the GDPR, that is, by a provision of national or Union law when such a restriction respects the essence of fundamental rights and freedoms and constitutes a necessary and proportionate measure in a democratic society for the safeguarding of the strictly specified purposes in paragraph 1 of Article 23 of the GDPR. Consequently, the right of access of the subjects cannot lawfully be restricted by a decision of the Board of Directors of the data controller nor by any other act (e.g., Opinion of the Public Prosecutor), but only by a law that meets the above conditions.

6. According to Article 11 of the GDPR “1. If the purposes for which the data controller processes personal data do not require or no longer require the identification of the data subject by the data controller, the data controller is not obliged to retain, obtain, or process additional information for the purpose of identifying the data subject solely for the purpose of compliance with the present regulation. 2. When, in the cases referred to in paragraph 1 of this Article, the data controller can demonstrate that it is unable to verify the identity of the data subject, the data controller shall inform the data subject accordingly, if possible. In such cases, Articles 15 to 20 do not apply, unless the data subject, for the purpose of exercising their rights arising from those articles, provides additional information that allows for the verification of their identity.” As explained in Recital 57 of the GDPR “If the personal data processed by a data controller do not allow the data controller to identify a natural person, the data controller should not be obliged to obtain additional information in order to identify the data subject solely for the purpose of compliance with any provision of this regulation. However, the data controller...

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The data controller should not refuse to receive supplementary information provided by the data subject for the purpose of supporting the exercise of their rights. Identification should include the digital identification of the data subject, for example, through an identity verification mechanism, such as the same credentials used by the data subject when logging into the online service offered by the data controller.⁸ Meanwhile, paragraph 2 of Article 12 of the GDPR states that “The data controller facilitates the exercise of the rights of data subjects as provided in Articles 15 to 22. In cases provided for in Article 11 paragraph 2, the data controller shall not refuse to act upon a request from the data subject to exercise their rights under Articles 15 to 22, unless the data controller demonstrates that it is unable to verify the identity of the data subject.” Furthermore, both in cases where processing does not require the verification of the identity of the data subject and in cases where such verification is required, if the data controller has reasonable doubts regarding the identity of the individual submitting a request to exercise rights under the GDPR, it may request the provision of additional information necessary to confirm the identity of the data subject (Article 12 paragraph 6 GDPR).

7. Article 29 paragraph 4c of the Code of Criminal Procedure (Law 4938/2022), which cites the National Emergency Center (EKAB), refers to the conditions for issuing a prosecutorial order and states the following: “The first-instance prosecutor: [...] b) orders public services, legal entities of public law, and other entities of general government as defined in Article 14 of Law 4270/2014 (A’ 143), as well as enterprises of the broader public sector, to deliver documents or provide copies thereof, when

legally or naturally persons with a right or legal interest request them, unless they pertain to documents mentioned in Article 263 of the Code of Criminal Procedure." Until the year 2022, the provision of Article 25 paragraph 4b of the then applicable Code of Criminal Procedure (Law 1756/1988) provided as follows: "The first-instance prosecutor: [...] b) is entitled to order public services, legal entities of public law, public utility organizations, and all generally public sector enterprises to deliver documents or provide copies thereof, when legally or naturally persons with a right or legal interest request them, unless they pertain to documents mentioned in Article 261 of the Code of Criminal Procedure." The aforementioned provision and the specific legislation on the protection of personal data are in a general-to-specific relationship, as has been ruled by the Council of State (see decisions 2296/2020 and 1817/2018).⁹ Therefore, in the event of a conflict between the provisions of the specific legislation on the protection of personal data (now GDPR) and those regarding the issuance of prosecutorial orders to third parties with a legal interest, the former prevail as more specific. Moreover, the provisions of the Code of Criminal Procedure refer only to the issuance of documents to third parties with a legal interest and not to the issuance of documents to data subjects following the exercise of the right of access under Article 15 GDPR.

9 Council of State 1817/2018: "Moreover, according to the provision of Article 11 paragraph 3 of the said law, if the data is disclosed to third parties, the data subject is informed of the disclosure beforehand, in order to exercise the right to object in accordance with Article 13. These provisions of Law 2472/1997, being specific, prevail over other general provisions of the legislation concerning the transfer of personal data, such as the provision of Article 25 paragraph 4(b) of the Code of Criminal Procedure (Law 1756/1988), which grants the First Instance Prosecutor the authority to order public services, legal entities of public law, public utility organizations, and all generally public sector enterprises to deliver documents or provide copies thereof, when legally or naturally persons with a right or legal interest request them..."

Council of State 2296/2020: "As has already been ruled (see Council of State 1817/2018), the provisions of Article 11 paragraph 3 of Law 2472/1997, being specific, prevail over other general provisions of the legislation that provide for the transfer of personal data, such as the provision of Article 25 paragraph 4(b) of the Code of Criminal Procedure. Consequently, the requesting Hospital was obliged, under the specific applicable provisions of Article 11 paragraph 3 of Law 2472/1997, to inform the data subject of the sensitive personal data..."

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8. The claims made by the Emergency Medical Service (EKAB) invoking the protection of the confidentiality of communications in order to justify the refusal to grant access to the requested communications via the emergency call center 166 are unfounded for the following reasons:

First, the claim that no personal details of the caller are requested, making identification impossible, overlooks the fact that the conversation and the generated data fall within the definition of personal data, and therefore identification is possible, even indirectly (see above, Recital 2).

Second, Article 5 paragraph 4(c) of Regulatory Act No. 216/2008 of the Hellenic Authority for Communication Security and Privacy (ADAΕ), which EKAB cites, arguing that under this provision the retention of the caller's name by the emergency response agency is prohibited, does not provide a legal basis for the refusal to satisfy the access right exercised by the complainants, because the aforementioned Regulatory Act was issued in application of the provisions of Article 8 paragraph 7(b) of Law 3471/2006, and therefore the scope of this Act is limited exclusively to cases where access to location data or the neutralization of the possibility of not displaying the calling line through the assistance of electronic communications service providers in public networks is required for the handling of an emergency incident, as indicated in Article 1 paragraph 1 thereof.

10 "The provider of a public communications network or publicly available electronic communications service must have means to neutralize the possibility of not displaying the calling line: [...] (b) for emergency calls to the competent public services dealing with such calls or to private emergency response entities recognized by the state, so that responses to these calls are provided, regardless of the existence of temporary consent from the subscriber or user. The data containing the identification

of the calling subscriber is stored and is available to the public service or the private emergency response entity only for the purpose of immediate response and intervention and only for the time necessary to complete that purpose, and is then deleted.

By a decision of the Authority for the Protection of Privacy in Telecommunications (ADAE), the procedures, methods, and any other technical details for the implementation of this provision are determined.

11 "1. This act establishes the procedures, methods, and any other technical details for the processing of location data and the neutralization of the possibility of not displaying the calling line by providers of public networks or publicly available electronic communications services, for the purpose of providing information to the competent authorities."

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Therefore, EKAB's claim that regarding the number 166 "it is objectively prohibited by Greek legislation to retain (if it had) the caller's details..." is unfounded.

Third, the decisions of the Board of Directors of EKAB regarding the transcription of recorded conversations through a process that does not include provisions for conducting transcriptions or granting audio files directly to citizens do not constitute a legal basis for the refusal to satisfy the contested access right because the decisions of the Board of Directors of EKAB do not have the force of law, and additionally, in this case, they contradict the higher-ranking law of the EU (GDPR), according to which the data controller is obliged to provide access and information to the data subject upon their request. It is therefore up to EKAB to adjust its procedures in such a way as to respect EU law as well as the rights of data subjects.

Fourth, EKAB's decision, according to which the transcripts of calls to the number 166 are classified as "confidential documents," on the one hand, does not find support in any legislative provision, nor does EKAB invoke any relevant provision, and on the other hand, it contradicts Union law as mentioned above.

Fifth, EKAB's claim made by invoking the provisions of Articles 2 paragraph 3, 5 in conjunction with 4 paragraph 1 of Law 3471/2006, which incorporated Directive 2002/58/EC on the protection of the confidentiality of communications, is based on a flawed interpretation regarding the relationship between the aforementioned Directive and national law 3471/2006 with the scope of the GDPR. Specifically, according to the provision of Article 95 of the GDPR, the Regulation does not impose additional obligations on natural or legal persons in relation to the provision of electronic communications services for the handling of emergency situations, for responding to calls to emergency numbers, including the single European emergency number 112, and for locating the caller and only for that specific purpose."

12 See also Opinion 5/2019 of the European Data Protection Board regarding the interaction between the Directive on the protection of privacy in the electronic communications sector and the GDPR.

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in relation to issues that are subject to specific obligations with the same aim as defined in Directive 2002/58/EC, whereas Recital 10 of that Directive explicitly states that "in the field of electronic communications, Directive 95/46/EC (note: references to the repealed Directive 95/46/EC are now considered references to the GDPR, according to Article 94(2) GDPR) applies in particular to all matters concerning the protection of fundamental rights and freedoms that are not explicitly covered by the provisions of this Directive, including the obligations of the data controller and the individual rights." A corresponding consideration is reiterated in Recital 173 of the GDPR, according to which: "This Regulation should apply to all matters concerning the protection of fundamental rights and freedoms against the processing of personal data and which are not covered by the specific obligations that have the same aim, as described in Directive 2002/58/EC of the European Parliament and of the Council, including the obligations of the data controller and the rights of natural persons." Furthermore, a similar reference is made in Recital 23 of Directive 2002/58/EC, which refers to the recording of communications for the purpose of proving transactions: "The confidentiality of communications should be ensured even in lawful business practice. Whenever necessary and legally permissible,

communications may be recorded for the purpose of proving commercial transactions. In this process, Directive 95/46/EC applies (...)." From the above, it is clearly inferred that for any issue not regulated by Law 3471/2006, such as, in particular, the exercise of the rights of data subjects in relation to processing, the general provisions of the GDPR apply and not Law 3471/2006.

6. Furthermore, while the National Center for Emergency Assistance (EKAB) invokes the confidentiality of communications under the interpretation of Article 5(1-3) of Law 2690/1999 in order to exclude the right of access to the relevant telephone conversations, it simultaneously, in a completely contradictory manner, refers to the recording of calls as "a lawful professional practice as an emergency service provider through the call center of the emergency number," which, however, is based on Article 4(3) of Law 3471/2006 and is exempt from the protection of confidentiality provided that the parties give their consent. This is also the reason why EKAB claims that it has informed the data subjects about the recording of the telephone conversation through a recorded message. However, this claim by EKAB constitutes a evaluative contradiction. If there is confidentiality of communication between the two parties, then this will apply to both parties. It is not possible for the telephone confidentiality of the EKAB employee to be protected in such a way that the caller is prohibited from accessing the conversation that concerns them, while the same does not apply to the caller, since EKAB has access to this conversation.

According to the above, all claims related to the protection of the confidentiality of communications made by EKAB are unfounded and cannot constitute a general restriction of the caller's right of access to their recorded conversation with 166 under Article 15 of the GDPR.

9. Finally, the fulfillment of the conditions of the exception in Article 15(4) of the GDPR, according to which the right to obtain a copy under paragraph 3 of the same article does not apply if the satisfaction of the right adversely affects the rights and freedoms of others, should be assessed on a case-by-case basis (in concreto), since these factors should not result in the denial of the provision of any information to the data subject (see Recital 63 GDPR) and the data controller is obliged under Article 12(1) in conjunction with Article 24(1) GDPR to take appropriate measures to provide the data subject with all possible information within the framework of Articles 15 to 22 and Article 34 GDPR. Consequently, in order to limit the right of the data subject to obtain a copy by invoking the provision of Article 15(4) GDPR, the data controller must be able to demonstrate that the satisfaction of the right in the specific case would adversely affect the rights and freedoms of a certain other person, and the recording of the voice of an employee during the execution of the...

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The duties of his work cannot be considered a sufficient reason for the prior refusal to satisfy the right in any case.¹³

10. According to the above, a policy that generally and in advance excludes the exercise of the right of access by callers to the number 166 to the records of recorded calls is contrary to the provisions of Articles 5(1)(a), 12(2), and 15 of the GDPR and should be revised within the framework of the compliance of the data controller with the General Regulation. It is also noted that the technical and organizational measures applied by the data controller, in order to ensure and be able to demonstrate that the processing is carried out in accordance with the GDPR, which include appropriate policies and procedures (Article 24(2) GDPR), must be reviewed and updated when deemed necessary, as explicitly required by Article 24(1) GDPR.

11. In this case, given the above-stated factual circumstances, the following are established:

A. Considering that, in this case, the applicants exercised their right of access to their recorded calls to the number 166 as data subjects, identifying in their requests the phone numbers from which they called, the date and time of each call, and that the National Emergency Center (EKAB), as the data controller, did not respond in any way to their requests for access to the records of their recorded phone calls, did not inform the applicants of the reasons for not acting on their request, did not ask for additional information for their identification (e.g., confirmation from the provider of the possession of the number or other details that could lead to the identification of each caller), but on the contrary

ignored these requests as repetitive, abusive, and "incomprehensible," a violation of Article 15(3) GDPR in conjunction with Articles 11(2), 12(4), and 12(6) GDPR is established on the part of EKAB as the data controller. As evidenced by the case file, EKAB responded to the complainant only after the complaint was submitted and communicated by the Authority, but sent its response to an incorrect email address, while claiming that no lawful right of access was ever exercised by the complainants, as no "official, signed request" was submitted to EKAB, which, however, is not necessary for the exercise of the right of access, as previously stated. In this context, it is considered aggravating that EKAB, in its initial response to the Authority, stated that the complainant knew at the time of submitting the request (June 2022) that he could not receive copies of the calls, while, as emerged from the examination of the case, this information was added to the EKAB website later, specifically in September 2022. It is also noted that the complainant, B, regardless of his status as a data subject (caller to 166), has an independent right of access to the data concerning his minor patient daughter, as exercising parental responsibility on her behalf, which EKAB, as the data controller, should have considered. Based on the above, the Authority unanimously finds that there is a case to exercise its corrective powers under Article 58(2) of the GDPR regarding the established violations and specifically that, based on the circumstances identified, an order should be issued under the provision of Article 58(2)(c) of the GDPR to satisfy the access rights of the complainants and additionally to impose, under the provision of Article 58(2)(f) of the GDPR, an effective, proportionate, and deterrent administrative monetary fine under Article 83 of the GDPR, both for restoring compliance and for punishing the unlawful behavior. For the determination of the fine, the Authority took into account the criteria set out in Article 83(2) of the GDPR, paragraph 5(b) of the same article applicable to this case, as well as the factual data of the examined case.

B. Furthermore, within the framework of the Authority's ex officio competence (Article 57(1)(a) and (d) GDPR) exercised in light of the examined complaint,

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It is established that, according to the general policy of the EKAB (National Emergency Aid Center) and invoking the general confidentiality of telecommunications, copies or transcripts of recorded telephone calls are not provided to citizens, but only to the competent prosecutor within the framework of a criminal investigation. Information regarding the aforementioned policy is provided through the EKAB website (<https://www.ekab.gr/pistopiitika-veveosis/>) as follows: "Copies of conversations or transcripts of conversations from 166 are not provided because they are covered by special confidentiality, in accordance with the telecommunications confidentiality legislation (Article 5, paragraphs 1, 2, 3 of Law 2690/1999). The invocation of the 'right of access' under Article 15 of the GDPR cannot be substantiated because EKAB does not certify the callers." However, as emerges from the preceding considerations, the practice of preemptively excluding the exercise of the right of access to a copy of the data (in the file of the recorded call) under Article 15, paragraph 3 of the GDPR is incorrect: The voice data of a natural person constitutes, in any case, personal data of that person, because even if the name of the caller is not collected, the data subject's voice may, in certain cases, be identifiable through supplementary information, such as providing a certificate from the telecommunications provider that they are the holder of the specific number, provided it is proven that the holder of the telephone number made the specific call. Therefore, EKAB, as the data controller, must primarily ensure the possibility of exercising the right of access under Article 15 of the GDPR to the recorded telephone calls to the number 166. Only in exceptional cases and under the conditions of Article 15, paragraph 4 of the GDPR may a specific request not be fulfilled. However, the potential existence of the aforementioned conditions should be assessed on a case-by-case basis (in concreto), within the framework of examining a specific access request. Based on the above, the Authority unanimously decides to issue an order to EKAB, in accordance with the provision of Article 58, paragraph 2, point d of the GDPR, to revise, within a period of one (1) month from the notification of this decision, the said policy regarding the satisfaction of access rights of callers to the records of recorded calls to the number 166, in the context of EKAB's compliance with the GDPR, in such a way that the exercise of the right of access under Article 15 of the GDPR is not generally preemptively obstructed for all interested data subjects, and to inform the Authority accordingly.

C. Finally, regarding the fulfillment of EKAB's transparency obligations concerning the aforementioned data processing, in its response No. G/EIS/1892/14-03-2023, EKAB argued that the transparency obligations under Article 13 of the GDPR are satisfied "with the appropriate updates available at various points on the website, and more specifically the details of the data controller <https://www.ekab.gr/diikisi-tou-ekav/>, the contact details of the DPO and the reference to the right to lodge a complaint <https://www.ekab.gr/dpo/15>, a brief and concise reference to the agency's policy, the data that are provided and those that are not provided, and the contact details of the Data Controller <https://www.ekab.gr/pistopiitika-veveosis/>. Also, many times when elderly individuals call the service protocol and do not have internet access, the corresponding information is provided by phone either from the Secretariat of the Emergency Medical Service or the Independent Office of the Data Protection Officer with which an internal connection (transfer) is made. Additionally, in the physical file of the service, there is a continuously updated draft file in book form, which any citizen can study at the Central Service office." Within this document, the information regarding the right of access is described as follows: "you have the ability to exercise ... a) the right to information and the right of access to all identifiable personal data that EKAB holds and processes regarding you, the nature of the processing ...". After the discussion of the case in the Plenary (6/2/2024), EKAB posted the aforementioned Policy on its website (www.ekab.gr/dpo), with the addition of the following information:

15 At this point, the details of the DPO and their deputy are mentioned, along with the following information: "EKAB processes your personal data in accordance with the applicable data protection legislation. However, if you wish to express a complaint regarding the processing of your personal data or to exercise one of the rights provided for in the General Data Protection Regulation (GDPR), you have the right to submit a written letter," the contact details with EKAB, and a reference to the right to lodge a complaint with the Authority.

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The phrase "Identifiable data does not include the caller's details at 166 of the EKAB since personal data of callers is not requested during the incident notification." From the above, it is established that the information provided to data subjects (callers to number 166 and patients) until February 2024 did not meet the transparency requirements of the GDPR, on the one hand, because it was not easily accessible to the subjects, as the necessary information was scattered across the EKAB website and not presented in a clear and comprehensible format, while the mentioned paper-based, "continuously updated" file located at the Central Service was not easily accessible to subjects who might be located anywhere in the territory; on the other hand, both the information mentioned on the website and the submitted "Personal Data Protection Policy" were vague and incomprehensible regarding the possibility (or not) of granting access to recorded telephone calls to the subjects, within the framework of exercising the right of access. Based on the above, the Authority unanimously finds that there is a case to exercise its corrective powers under Article 58(2) of the GDPR concerning the established violation of the obligation to inform data subjects under Article 13 of the GDPR, in accordance with the fundamental principle of transparency (Article 5(1)(a) of the GDPR) in any case until February 2024, when the above addition to its Policy was posted on the EKAB website, regardless of whether this addition is in accordance with Article 15 of the GDPR, in light of what is mentioned above in point A, and that it must, in application of the provision of Article 58(2)(h) of the GDPR, impose an effective, proportionate, and dissuasive administrative monetary fine under Article 83 of the GDPR, both for the restoration of compliance and for the punishment of the unlawful behavior. For the determination of the fine, the Authority took into account the criteria set out in Article 83(2) of the GDPR, paragraph 5(h) and (i) of the same article applicable to the present case, as well as the factual data of the examined case.

FOR THESE REASONS

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THE AUTHORITY

A. Imposes on EKAB, as the data controller, based on Article 58(2)(h) of the GDPR, an administrative

fine of twenty thousand (20,000€) euros, for the established violation of the right of access of the complainants to a copy of their recorded telephone conversations with the 166 call center, according to what is established in point A of consideration 11 above.

B. Issues to EKAB, as the data controller, based on Article 58(2)(c) of the GDPR, an order to satisfy the requests made on 24/6/2022 and 26/9/2022 by the complainants for access rights, by providing copies of the recorded telephone conversations from 15/6/2022, in accordance with what is mentioned in the background of this decision.

C. Issues to EKAB, as the data controller, based on Article 58(2)(d) of the GDPR, an order that within a period of one (1) month from the notification of this decision, it shall revise the policy it applies regarding the satisfaction of access rights of callers to the records of recorded calls to number 166, in the context of EKAB's compliance with the GDPR, in such a way that the exercise of the right of access under Article 15 of the GDPR is not generally precluded in advance from all interested subjects, and to inform the Authority accordingly.

D. Imposes on EKAB as the data controller, based on Article 58(2)(h) of the GDPR, an administrative fine of ten thousand (10,000€) euros, for the established violation of the obligation to inform data subjects under Article 13 of the GDPR in accordance with the fundamental principle of transparency (Article 5(1)(a) of the GDPR) from the implementation of the GDPR (25/5/2018) until February 2024.

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The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou